PROTECT Act: Student Questions

Staff Fact Sheet · Oct. 21, 2026 · Draft

Our role is to point students to accurate info and qualified legal help, not to assess their cases.

A helpful opening: "You do not need to tell me your immigration status. I can help you find reliable information and someone qualified to answer questions about your situation."

Aug. 5, 2026
Signed. Job-inspection notices + guardianship planning.

Sept. 4, 2026
Police + court staff limits.

Nov. 3, 2026
Courthouse arrests, detention notices, U/T deadlines.

STUDENT ASKS	SHORT ANSWER	STAFF NEXT STEP	BEST TO AVOID
Can ICE arrest someone at court? FROM NOV. 3	• MA courthouse civil arrests need a **judicial** warrant/order • None inside a courtroom • ICE administrative warrant ≠ judicial warrant[1, 2]	Contact their lawyer soon.	Advising on skipping court. Calling court "safe." Saying all ICE arrests need a judge.
Can police ask my status? SINCE SEPT. 4	• Covered police/court staff generally can't ask or record it (exceptions) • Limits ICE help; doesn't ban all of it[1]	Share MIRA explainer. Specific encounter → legal help.	Applying it to all employers or schools.
Family member detained or moved REFER PROMPTLY	• Time-sensitive • **New facility rules from Nov. 3:** covered MA facilities update records within 6 hrs and try to notify lawyer + contact within 6 hrs of transfer • Not every location covered[1]	Help the family connect with a lawyer as soon as they can.	Promising a filing stops a transfer or a 48-hr hold in MA.
ICE inspection at my job SINCE AUG. 5	• Employers generally must notify all employees in writing within 48 hours after receiving an ICE inspection notice • I-9 / employment records • Notice rule, not an access ban[1]	Refer to worker + immigration legal help.	Advising on changing or submitting documents.
Boss or landlord threatened me	• Some crime/trafficking survivors may qualify for U/T visas • Wage theft or housing issues don't auto-qualify • **From Nov. 3:** agencies generally respond to certification requests within 45 days, or 14 business days in specified urgent cases. Certification ≠ visa[1, 3]	Private conversation + referral.	Asking for details in class. Promising a visa.
Plan care for my child	• Caregiver affidavit: school + health decisions, no court, parent keeps rights • Standby guardian: separate, court-confirmed • Not always both[1, 4]	Share MLRI guide. Connect to legal help.	Choosing the option for them.
Officer not following the law	• AG enforces • MIRA hub links to the Section 7 complaint process[1, 5]	With consent, note basic facts + keep papers. Optional support route on back.	Collecting extra status info. Promising an outcome.

General staff information, not individual legal advice. Numbers refer to sources on the back. **Turn over →**

How Staff Can Help

Every conversation

- **Language:** offer their preferred language (MIRA: English, Spanish, Haitian Creole, Portuguese).
- **Consent:** ask what help they want and how to contact them safely. Ask before sharing info or referring.
- **Privacy:** follow program procedures. No case details in class notes or group talk.
- **Time-sensitive:** for detention, transfer, or a court date coming up, a legal referral is the best next step.
- **Legal questions:** leave warrant interpretation and court filings to qualified legal providers. Do not guarantee outcomes.

Student handout (*The PROTECT Act: What to Know*): it's a good idea to have counsel review it and check for updated guidance before sharing.

Resources to share

MIRA PROTECT Act hub – start here: explainers in 4 languages, trainings, AG complaint process. *Scan with a phone.*
miracoalition.org/resources/the-protect-act-8-5-2026

MIRA Know Your Rights
miracoalition.org/resources/know-your-rights

MIRA legal services – attorneys + accredited reps
miracoalition.org/resources/legal-services

MLRI / MassLegalHelp: Planning for a Family Emergency
masslegalhelp.org/immigration/know-your-rights/planning-family-emergency

If you want to report a problem · one possible support route

This is optional, not a required chain. Please check with the student first, and share only with their consent. MIRA's PROTECT Act hub (QR above) also links directly to the AG complaint process.

Someone isn't following the law (officer, agency, court, jail)

Student / teacher notes date, time, place → **LUCE** a good first contact → **MLRI** LUCE usually contacts MLRI → **Attorney General** MLRI can raise it with the AG

Teacher needs help or is having issues

Teacher let me know what's going on → **Marlie (MLRI)** I can pass it along → **MLRI Immigration Unit**

LUCE: 617-370-5023
Marlie: 770-378-9207 · mcreed@mlri.org · mcreed@ebhcs.org
For detention, transfer, or an upcoming court date, help the student contact a qualified lawyer promptly. Do not wait for this reporting process.

Sources for staff review

1. Massachusetts Acts of 2026, Chapter 163, especially §§ 6–13 and effective-date provisions. malegislature.gov/Laws/SessionLaws/Acts/2026/Chapter163
2. Massachusetts Trial Court policy on interactions with ICE. mass.gov/policy-statement/massachusetts-trial-court-policy-on-interactions-with-united-states-immigration-and-customs-enforcement
3. Massachusetts PROTECT Act guidance. mass.gov/info-details/the-protect-act
4. Massachusetts caregiver authorization law, Chapter 201F, § 2. malegislature.gov/Laws/GeneralLaws/PartII/TitleII/Chapter201F/Section2
5. MIRA PROTECT Act hub (Attorney General complaint-process guidance). miracoalition.org/resources/the-protect-act-8-5-2026